

Calendar line 9**Case Name:** *Deepak Jariwala v FCA US LLC***Case No.:** 26CV487410

Plaintiff Deepak Jariwala's Motion to Enforce Code of Civil Procedure section 871.26

Background

Plaintiff filed this Song-Beverly Consumer Warranty Act action on February 17, 2026, concerning a 2024 Jeep Wrangler 4xe. Defendant FCA US LLC filed its Answer on April 1, 2026. Before filing suit, Plaintiff requested that FCA repurchase the Subject Vehicle. Plaintiff made that request on January 6, 2026, and FCA agreed to repurchase the vehicle on January 12, 2026.

Section 871.26 applies to this action. Within 60 days after the filing of an answer or other responsive pleading, the statute requires the parties, without awaiting a discovery request, to provide the initial disclosures and documents specified in subdivisions (f), (g), and (h). (Code Civ. Proc., § 871.26, subd. (b).) The 60-day period following FCA's April 1, 2026 Answer expired on May 31, 2026, a Sunday; therefore, the production deadline was June 1, 2026.

Among the documents required to be produced by the manufacturer are "[w]arranty policies and procedure manuals" (§ 871.26, subd. (h)(12)) and, "[i]f a pre-suit restitution or replacement request is made," the manufacturer's written statement of the policies and procedures used to evaluate customer requests for restitution or replacement pursuant to Lemon Law claims (§ 871.26, subd. (h)(15)).

On May 29, 2026, FCA produced numerous documents concerning the Subject Vehicle, including repair-order detail reports, warranty claims records, the owner's manual, warranty information booklet, communications between Plaintiff and FCA, technical service bulletins, and applicable recalls. FCA did not, however, produce the warranty policies and procedure manuals or the written statement of policies and procedures described in subdivisions (h)(12) and (h)(15).

Instead, FCA provided Plaintiff with a proposed protective order and advised that the proposed order would apply to, among other things, its Warranty Administration Manual, Dealer Policy Manual, and Customer Assistance Center Policies and Procedures. Plaintiff declined to stipulate to the proposed protective order. FCA did not obtain a court order permitting it to withhold the documents before the June 1 deadline.

Plaintiff filed this motion on June 2, 2026. FCA filed an Opposition on August 20, 2026, and Plaintiff filed a Reply on August 26, 2026.

Analysis

Section 871.26(b) establishes a mandatory initial-disclosure obligation. It provides that, within 60 days after the filing of the answer or other responsive pleading, the parties "shall, without awaiting a discovery request," provide the disclosures and documents identified in the statute.

Subdivision (h) then specifies the documents that a manufacturer must produce, including the documents identified in subdivisions (h)(12) and (h)(15). (Code Civ. Proc., § 871.26, subds. (b), (h).)

There is no dispute that the documents identified in subdivisions (h)(12) and (h)(15) fall within the statutory disclosure scheme. Nor is there a dispute that Plaintiff made a pre-suit request for repurchase, thereby triggering subdivision (h)(15). FCA contends that it complied with section 871.26 by producing documents concerning the Subject Vehicle and that it was entitled to condition production of its warranty and Lemon Law policies and procedures upon Plaintiff's agreement to a protective order. The Court disagrees.

First, production of other documents does not satisfy FCA's obligation to produce the specific categories required by subdivisions (h)(12) and (h)(15). The statute does not limit the manufacturer's initial disclosure obligation to documents concerning the particular vehicle at issue. It expressly requires production of the enumerated categories of manufacturer documents.

Second, the Court need not decide the broader question whether a court may, in an appropriate case, enter a protective order concerning documents produced pursuant to section 871.26. The narrower question presented here is whether FCA could withhold documents that section 871.26(b) required it to produce within 60 days while conditioning their production upon Plaintiff's agreement to a stipulated protective order. It could not.

Section 871.26(b) expressly requires production "without awaiting a discovery request." The statutory disclosure therefore is not dependent upon a party first propounding a document demand or upon the responding party negotiating the terms on which the disclosure will occur. FCA knew by April 1, 2026, that the statutory disclosures were due within 60 days. Rather than produce the disputed documents by the statutory deadline, FCA proposed a protective order two business days before the deadline and, after Plaintiff declined to stipulate, did not seek timely judicial relief permitting it to withhold the documents.

Whatever authority a court may have in an appropriate case to protect legitimately confidential or commercially sensitive information, that authority does not give a party the unilateral ability to suspend a mandatory statutory disclosure deadline while it seeks the opposing party's agreement to confidentiality restrictions. FCA was required to make the statutory disclosure by the June 1 deadline.

The Court therefore declines to find that section 871.26 categorically prohibits protective orders. Nor does the Court decide whether FCA could, upon a proper showing, seek narrowly tailored protection for particular confidential information after complying with its statutory disclosure obligation. The Court holds only that FCA was not entitled to withhold the required documents pending Plaintiff's agreement to a stipulated protective order.

FCA also has not demonstrated good cause for its failure to comply with section 871.26. FCA's declaration asserts generally that the documents contain proprietary business practices and commercially sensitive information. On the present record, however, FCA does not identify with sufficient specificity the information for which protection is sought, explain how

disclosure would cause concrete competitive harm, or otherwise establish why it was entitled to withhold the documents altogether during the statutory disclosure period.

The Court is mindful that section 871.26 is a relatively recent statutory scheme and that trial courts have reached differing conclusions concerning the availability and timing of protective orders for documents produced under the statute. That disagreement does not alter the result here. The Court is not holding that all documents produced under section 871.26 are necessarily unprotected from disclosure outside the litigation. The Court holds that Defendant could not unilaterally condition the statutorily mandated initial production upon Plaintiff's agreement to a protective order and then rely upon Plaintiff's refusal to stipulate as justification for noncompliance.

Sanctions

Plaintiff also requests the \$2,500 sanction prescribed by section 871.26, subdivision (j)(1).

Subdivision (j)(1) provides that, "[u]nless the party failing to comply with this section shows good cause," the court shall impose a \$2,500 sanction against the defense attorney for failure to comply with the document-production requirements of subdivision (b). (Code Civ. Proc., § 871.26, subd. (j)(1).)

FCA failed to produce the documents required by subdivisions (h)(12) and (h)(15) within the statutory period. FCA has not established good cause for that failure. Its decision to condition production upon Plaintiff's agreement to a proposed protective order does not establish good cause for noncompliance, particularly where FCA did not seek timely judicial relief before the statutory deadline.

Accordingly, the \$2,500 sanction is mandatory.

Disposition

Plaintiff's Motion to Enforce Code of Civil Procedure section 871.26 is GRANTED.

The Court declines at this time to determine whether any particular document or portion thereof may be subject to a properly supported protective order. Nothing in this ruling precludes FCA from seeking narrowly tailored protective relief concerning particular information upon a proper showing of good cause.

Plaintiff's request for monetary sanctions is GRANTED. Defense counsel for Defendant FCA US LLC shall pay \$2,500 in monetary sanctions to Plaintiff within 15 days of service of the Court's order, pursuant to Code of Civil Procedure section 871.26, subdivision (j)(1).

Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.